

Risk	Fee rule	Plaintiff shortfall	Nonliable defendant	Liable defendant	Gross outcome error	Real litigation costs
Risk Neutral	American	0.2164–0.2164	0.2219–0.2219	0.0278–0.0278	0.2776–0.2776	0.2924–0.2924
Risk Neutral	Trial Fee-Shifting	0.2089–0.2089	0.1982–0.1982	0.0475–0.0475	0.2774–0.2774	0.2660–0.2660
Risk Neutral	Complete Fee-Shifting	0.2318–0.2318	0.1645–0.1645	0.0748–0.0748	0.2848–0.2848	0.2591–0.2591
Risk Averse	American	0.1984–0.2832	0.1544–0.2832	0.0052–0.0228	0.2763–0.3728	0.1812–0.3356
Risk Averse	Trial Fee-Shifting	0.1970–0.2671	0.1607–0.2568	0.0098–0.0211	0.2816–0.3184	0.1822–0.2652
Risk Averse	Complete Fee-Shifting	0.2103–0.2979	0.1479–0.2953	0.0045–0.0385	0.2976–0.3801	0.2210–0.3093